

## **Tentative Rulings**

**April 21, 2025**

**Department 44**

**2:30 p.m.**

**\*\*\*The Tentative Rulings below are designed to eliminate unnecessary court appearances. If the Court grants a Petition and signs your order, it will be processed and placed in your will-call or deposited in the mail after Monday's calendar. If you wish to appear on your case, telephonic appearances are strongly encouraged utilizing CourtCall. Please schedule your appearance online for Department 44 at Courtcall.com or by calling 888-882-6878 (See CourtCall link under "General Information" on the Court's website). \*\*\***

### **CONSERVATORSHIPS**

#### **CONSERVATORSHIP OF JEREMY ERICKSON**

**Case Number: 24PC-0032531**

This matter is on calendar for confirmation of filing of the Proof of Service of Notice of Conservatee's Rights, Conservatorship Care Plan, Inventory and Appraisal, and proof of service of the Notice of Filing of the Inventory and Appraisal. The Conservatorship Care Plan and Inventory and Appraisal have been filed, and are accepted by the Court. The conservator is still required to file Proof of Service of Notice of Conservatee's Rights, and proof of service of the Notice of Filing of the Inventory and Appraisal.

This matter is continued to **Monday, May 5, 2025, at 2:30 p.m. in Department 44** for Confirmation of Filing of the Proof of Service of Notice of Conservatee's Rights, and proof of service of the Notice of Filing of the Inventory and Appraisal. If the documents cannot be filed before the continued hearing date, the court may issue an Order to Show Cause Re monetary sanctions. **No appearance is necessary on today's calendar.**

#### **CONSERVATORSHIP OF GRETA GIVLER**

**Case Number: 23PC-0032165**

This matter is on calendar for further proceedings on an Amended Petition to Address Actions of the Prior Power of Attorney, for Approval of a Reconstructed Account, and for Damages for Elder Abuse. The matter has not been properly noticed, as Lydia Giardetti is represented by counsel, and there is no proof of service on file showing service was made on the attorney of record. Respondent has also not been properly noticed. The Petition seeks monetary damages and therefore, the matter must be served on respondent in the manner for serving summons. Service by mail is insufficient to obtain jurisdiction over the respondent. The Court notes that citations previously issued for prior hearing dates, but there has never been a proof of personal service filed as to any notice or Petition on Respondent. The Court has previously raised this issue regarding obtaining jurisdiction over respondent. Finally, the Petition fails to sufficiently allege the necessary facts to warrant relief. Petitioner's allegations are based on information and that "with a reasonable opportunity for discovery the evidence will show" that Respondent wrongfully took the funds. The Court cannot grant relief without sufficient factual allegations of the underlying damages. It is likely that an evidentiary hearing will be necessary to establish the amount of damages. This matter is continued to **Monday, June 2, 2025, at 2:30 p.m. in Department 44** for further proceedings on the Amended Petition. Petitioner shall file and timely serve a

new Notice of Hearing for the continued hearing date. Respondent must be personally served with the Notice of Hearing and Amended Petition. **No appearance is necessary on today's date.**

## **CONSERVATORSHIP OF ARGENT HALE**

**Case Number: 23PC-0032036**

This matter is on calendar for a Petition for Approval of Amended First and Final Account and Report of Conservator, and Petition for Fees. The matter has been properly noticed, with proof of service on file. The Petition fails to include a full accounting. The accounting only contains a summary of the account. No schedules are attached. Additionally, counsel's fees seem excessive; specifically, the number of hours to prepare the accounting, which is not a complete accounting. The request for attorney's fees is subject to being reduced to a reasonable number of hours based on the activities listed. In addition, the conservator's request for fees includes a period of time that overlaps with the prior order granting her conservator's fees. This matter is continued to **Monday, June 16, 2025, at 2:30 p.m. in Department 44** for further proceedings on the Amended Petition. Petitioner file and timely notice an Amended Petition which includes a full accounting including all schedules. The Court will retain the lodged account statements for the continued hearing date. The hearing currently scheduled for April 28, 2025, for receipt of an amended final accounting is hereby **VACATED**. **No appearance is necessary on today's calendar.**

## **CONSERVATORSHIP OF MORGAN HAUPTMAN**

**Case Number: 25PC-0032785**

This matter is on calendar for hearing on a Petition for Appointment of a Conservator of the Person. The matter has been properly noticed, with proof of service on file. The Citation has been filed with proper proof of service. Counsel has been appointed for the Conservatee. No objections have been raised. The Court has reviewed the Court Investigator's report, filed April 3, 2025, which recommends granting the Petition. The Court intends to **GRANT** the Petition, absent an appearance and objection as noted below. A proposed order was submitted and will be executed. The matter will be set for **Monday, August 25, 2025, at 2:30 p.m. in Department 44** for confirmation of filing of the Care Plan and Proof of Service of Notice of Conservatee's Rights. The matter is set for **Monday, April 27, 2026, at 2:30 p.m. in Department 44** for Annual Review. **An appearance is necessary on today's calendar only if there is an objection by the Public Defender's office.**

## **CONSERVATORSHIP OF BELLA LICATA**

**Case Number: 24PC-0032712**

This matter is on calendar for further proceedings on the Second Amended Petition for Appointment of a Conservator of the Person. The matter has been properly noticed, with proof of service on file. No objections have been raised. The Court has reviewed the Court Investigator's report, filed April 3, 2025, which recommends granting the Petition. The Court intends to **GRANT** the Petition, absent an appearance and objection as noted below. A proposed order was submitted and will be executed. The matter will be set for **Monday, August 25, 2025, at 2:30 p.m. in Department 44** for confirmation of filing of the Care Plan and Proof of Service of Notice of Conservatee's Rights. The matter is set for **Monday, April 27, 2026, at 2:30 p.m. in Department 44** for Annual Review. **An appearance is necessary on today's calendar only if there is an objection by the Public Defender's office.**

## **CONSERVATORSHIP OF PETER MITCHELL**

**Case Number: 24PC-0032302**

This matter is on calendar for confirmation of filing the Final Account and Report. Nothing has been filed since the last hearing. This matter is continued to **Monday, June 2, 2025, at 2:30pm in Department 44**

for further proceedings regarding confirmation of filing the Final Account and Report. If a Final Account and Report cannot be filed prior to the continued hearing date, the Court **ORDERS** a Status Report be filed and served no later than five court days before the next hearing date to advise what must be accomplished before the Final Account and Report can be filed. Failure to file either the Final Account and Report or the Status Report may result in the issuance of an Order to Show Cause Re Monetary Sanctions of \$250.00 for failure to timely file the Account and Report, and failure to comply with the Court's order. **No appearance is necessary on today's calendar.**

## **CONSERVATORSHIP OF JOHN SHADWELL**

**Case Number: CVPG03-0023876**

This matter is on calendar for confirmation of filing of the Final Account and Report. Nothing has been filed since the last hearing. This matter is continued to **Monday, June 2, 2025, at 2:30pm in Department 44** for further proceedings regarding confirmation of filing the Final Account and Report. If a Final Account and Report cannot be filed prior to the continued hearing date, the Court **ORDERS** a Status Report be filed and served no later than five court days before the next hearing date to advise what must be accomplished before the Final Account and Report can be filed. Failure to file either the Final Account and Report or the Status Report may result in the issuance of an Order to Show Cause Re Monetary Sanctions of \$250.00 for failure to timely file the Account and Report, and failure to comply with the Court's order. **No appearance is necessary on today's calendar.**

## **CONSERVATORSHIP OF BEATRICE WORK**

**Case Number: 24PC-0032602**

This matter is on calendar for confirmation of filing the Proof of Service of Notice of Conservatee's Rights, Conservatorship Care Plan, Inventory and Appraisal, and proof of service of the Notice of Filing of the Inventory and Appraisal. None of the required documents have been filed. A Status Report has not been filed.

This matter is also on calendar for a Notice of Motion to Withdraw Conservatorship. It appears the Petitioner is effectively requesting to terminate the conservatorship. The matter has not been properly noticed. All parties entitled to notice must be served at least 15 days before the hearing; notice was provided only 10 days in advance of the hearing. The conservatee has not been served. Further, the petition is not verified, as required by California Rule of Court 7.103. The Court notes that only one of the conservators has filed the petition.

The matter is continued to **Monday, June 2, 2025, at 2:30pm in Department 44** for confirmation of the Proof of Service of Notice of Conservatee's Rights, Conservatorship Care Plan, Inventory and Appraisal, and proof of service of the Notice of Filing of the Inventory and Appraisal. The matter is continued to **Monday, June 2, 2025, at 2:30pm in Department 44** for further proceedings on the Motion to Withdraw. To move forward with the Petition, an amended petition must be filed curing the defect above, and a new Notice of Hearing for the continued hearing date must be timely filed and served on all parties entitled to notice. The clerk is directed to provide a copy of today's minutes to the Court Investigator's office so they can conduct an investigation regarding the Petition to terminate. **No appearance is necessary on today's calendar.**